

Ranjeet Kumar Yadav v. State of U.P. and 2 Others

High Court of Judicature at Allahabad · Division Bench · 17 April 2023 · Writ - C No. 11545 of 2023 · **Writ withdrawn with liberty; no opinion on the demand.**

HEADNOTE

Writ against a recovery notice dated 1 July 2022 for electricity dues of Rs. 2,16,288, raised after a post-disconnection meter test said to have been held in the consumer's absence, was disposed of as withdrawn. The department submitted that the grievance lay before the Consumer Grievance Redressal Forum under Clause 7.10 of the U.P. Electricity Supply Code, 2005, and the petitioner stated that he would approach that Forum. The Court expressed no opinion on the merits and left liberty to avail such other remedy as may be advised.

FACTUAL SUMMARY

Ranjeet Kumar Yadav challenged a recovery notice dated 1 July 2022 for electricity dues of Rs. 2,16,288. Supply to his premises had been permanently disconnected on 29 October 2021. The meter removed from the premises was sent for testing after a notice dated 2 November 2021 asking him to remain present on 15 November 2021. He did not appear. Testing proceeded in his absence, and the impugned demand was raised on the test report.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

Withdrawal after the clause 7.10 forum was pointed out

HOLDING

The writ against the recovery notice was disposed of as withdrawn, without any opinion on merits and with liberty to avail such other remedy as may be advised, after the department submitted that the grievance could be raised before the Consumer Grievance Redressal Forum under Clause 7.10 of the U.P. Electricity Supply Code, 2005, and the petitioner stated that he would approach that Forum. ¶ 17.4.2023

PRINCIPLE TAGS

consumer-grievance-redressal-forum-remedy-clause-7.10

The department told the Court that a grievance against the recovery notice could be raised before the Consumer Grievance Redressal Forum under Clause 7.10. The petitioner accepted that course and withdrew the writ. The Court recorded the withdrawal and the liberty; it did not construe the clause or decide the demand. ¶ 17.4.2023

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE DEMAND OF RS. 2,16,288, BASED ON A METER TEST CONDUCTED IN THE PETITIONER'S ABSENCE, WAS LAWFUL

The petition was disposed of as withdrawn without any opinion on merits. ¶ 17.4.2023